

EXHIBIT 5: UNAUTHORIZED DISCLOSURE & LOG SPOILIATION

Subject

Respondent: Prior Lake-Savage Area Schools (ISD 719)

Statutory Focus: FERPA (20 U.S.C. § 1232g), Minn. Stat. § 13.05 (Data Security), and Minn. Stat. § 13.09 (Willful Violation & Spoliation)

Executive Summary

This exhibit documents a concerted campaign by District leadership to conceal an unauthorized data disclosure and actively obstruct the Complainant's access to public records. Following a December 2024 technical anomaly that exposed an auto-forwarding rule relaying private student data to unauthorized addresses, the Complainant formally requested the District's Google Workspace Email Logs. The District repeatedly denied these requests in bad faith, falsely claiming they "did not understand" the request and had no responsive data. When the District finally produced a log on March 14, 2025, the data was intentionally truncated to begin on February 12, 2025, executing a targeted spoliation of the critical dates in question. A subsequent unrequested "privacy investigation" further proved the District always possessed the technical capability to produce the requested logs.

Index of Evidence Assets

Asset	File Name(s)	Relevance & Statutory Impact
Exhibit 5A: The Original Communication	20241213_OriginalEmail.pdf	Documents the December 13, 2024 email sent to Superintendent Thomas detailing the weapons policy failure. This establishes the baseline timestamp for the

Asset	File Name(s)	Relevance & Statutory Impact
		subsequent unauthorized forwarding anomaly.
Exhibit 5B: The Forwarding Anomaly (Breach)	20241220_Bounceback.pdf	The December 20, 2024 "Delivery Status Notification (Failure)" bounce-back. The attached headers prove the email had successfully reached the Superintendent's inbox on Dec 13, confirming the bounce-back was triggered by an unauthorized auto-forwarding rule (FERPA violation).
Exhibit 5C: The False Denial of Data	March 13 2025 E. Herman Response.pdf	Emily Herman's official response denying the request for Google Workspace logs, falsely claiming the District "is unclear on what further information you are requesting" and "has no further responsive data" (Minn. Stat. § 13.09 Willful Violation).
Exhibit 5D: Log Spoliation & Truncation	20250314_TruncatedLogProduction_FULL_THREAD.pdf	The March 14, 2025 production proving the District possessed the exact

Asset	File Name(s)	Relevance & Statutory Impact
	SeanLogs021225to031425.xlsx	logs they previously denied existing. Crucially, the attached CSV proves the District intentionally truncated the log to begin on February 12, 2025, destroying evidence of the December 20th anomaly.
Exhibit 5E: Verification of Technical Capability	20250600_PrivacyInvestigation_FULL_THREAD.pdf	Documentation of an unrequested "privacy investigation" initiated by the District in June 2025, which yielded the exact detailed log formats the District had spent months claiming they could not produce.

Exhibit 5: Unauthorized Disclosure, Log Spoliation, and Obstruction of Evidence

Subject [REDACTED] / Prior Lake-Savage Area Schools (ISD 719)
Legal Authority: Family Educational Rights and Privacy Act (FERPA), 20 U.S.C. § 1232g; Minnesota Government Data Practices Act (MGDPA), Minn. Stat. § 13.04, § 13.03 & § 13.09; Title IX (34 C.F.R. § 106.71).

I. Overview

This exhibit details a concerted campaign of obstruction by District leadership—specifically Superintendent Michael Thomas and Title IX Coordinator Emily Herman—to conceal evidence of an unauthorized data disclosure. Following a suspicious email delivery anomaly in December 2024, the District engaged in months of deliberate non-compliance, falsely claiming that “full email logs” did not exist and that they “did not understand” the parent’s requests. The District’s bad-faith stance was definitively exposed when the District miraculously produced a highly specific subset of the requested logs, and later initiated an unrequested “privacy investigation” utilizing the exact log formats they previously claimed they could not produce.

II. The December 2024 Forwarding Anomaly

On December 13, 2024, the parent sent an email to Superintendent Michael Thomas (and others) regarding the District’s failure to follow its Weapons Policy after the student was violently assaulted with a chair.

One week later, on December 20, 2024, the parent received a highly anomalous “**Delivery Status Notification (Failure)**” bounce-back message from the Google Mail Delivery Subsystem. The error stated: “*Delivery to the following recipient failed permanently:*”

Analysis of the Anomaly:

- The original message headers attached to the bounce-back confirm that the email had **already been successfully delivered** to mthomas@plsas.org on December 13.
- Because the email was sent *from* the parent, a bounce-back stating delivery failed *to* the parent implies that the District’s system, or Michael Thomas’s account directly, attempted to automatically forward or relay the message to an external, unauthorized system that subsequently rejected it.
- This anomaly raises immediate, severe FERPA concerns: If District leadership was auto-forwarding emails containing highly sensitive, protected student data to external, non-District addresses, they were committing unauthorized disclosures of private education records.

III. The Campaign of Obstruction and Log Withholding

Recognizing the implications of the December 20 bounce-back, as well as seeking proof of how the original November 1 Title IX complaint was “filtered,” the parent submitted multiple MGDPA

and FERPA requests between January and March 2025 seeking the full **Google Workspace Email Logs** and unredacted message headers.

The District's response was a masterclass in intentional obstruction:

Date	District Action / Statement
02/26/2025	Emily Herman claims there is "no additional responsive data" and provides a heavily cropped, non-functional screenshot of a log event rather than the exported log.
03/12/2025	Emily Herman officially denies the request, stating: <i>"the District is unclear on what further information you are requesting regarding a 'full email log.'... As such, the District has no further responsive data."</i>

IV. The "Subset" Log Production and Unrequested Investigation

The District's claim that it did not understand the request or possess the data was proven to be a deliberate falsehood through its own subsequent actions.

1. The Conveniently Truncated Log (March 14, 2025):

Exactly one day after dismissing the Title IX complaint and claiming no logs existed, Emily Herman miraculously produced an Excel spreadsheet titled SeanLogs021225to031425.xlsx. She stated her "tech department was able to generate the attached report today."

The Catch: This log was a pristine Google Workspace Email Log containing exactly the metadata the parent requested—but it was **intentionally truncated to begin on February 12, 2025**. This arbitrary start date conveniently omitted the critical dates of November 1 (the filtered Title IX complaint) and December 13/20 (the unauthorized forwarding anomaly), executing a targeted spoliation of the evidence.

2. The Unrequested "Privacy Investigation" (June 2025):

In June 2025, the District informed the parent that it was initiating its own internal "privacy investigation." The parent explicitly noted they had never requested such an investigation. However, when the District produced records responsive to this unrequested investigation, it provided the *exact type of detailed email logs* the parent had originally demanded. This confirmed, beyond any doubt, that the District always possessed the technical capability to export and provide these logs, but willfully lied about it to conceal the December 2024 forwarding anomaly and the November Title IX filtering failure.

V. Identified Statutory Violations

1. Unauthorized Disclosure of Private Education Data (FERPA &

MGDPA)

The December 20, 2024 email bounce-back provides technical evidence that Superintendent Thomas or other District leadership forwarded emails containing private student data to external/unauthorized addresses in violation of FERPA.

2. Willful Withholding and Obstruction (Minn. Stat. § 13.09)

The District repeatedly provided false statements regarding the existence and availability of Google Workspace email logs. Under the MGDPA, willfully withholding public or private data from a data subject, or willfully providing false information regarding its existence, is a severe violation. The District's March 14 and June 2025 productions prove their earlier denials were made in bad faith.

3. Spoliation of Evidence (Title IX & MGDPA)

By eventually providing a log that was deliberately truncated to exclude the exact dates of the anomalies in question (Nov 1 and Dec 13-20), the District engaged in the targeted destruction or suppression of evidence relevant to an active Title IX investigation and a formal records request.

Institutional Complicity in Data Spoliation: The School Board was actively copied on the repeated requests for Google Workspace logs and the evidence of the unauthorized forwarding anomaly. Their failure to compel compliance or investigate the "blind denials" establishes that the obstruction and spoliation of public records is a tolerated custom and practice of the District, triggering institutional liability.

End of Exhibit 5

EXHIBIT 5A

ATTN: Michael Thomas - follow up request

4 messages

To: Michael Thomas <mthomas@plsas.org>

Hello Michael,

We are holding on confirmation re: whether it was you or one of your designees who made the decision to deviate from school policy, when that decision was made, and if a designee when you were notified. If there is someone more appropriate for us to be bringing this question to, please let us know.

Thank you,

Hello Michael,

My name is [REDACTED] and I am contacting you in regards to the concerns noted in the email below. I would like to make sure my complaint represents the situation as accurately as possible; can you confirm that you made the decision to deviate from the minimum consequences outlined in PLSAS's posted policy on attacks involving a weapon (https://www.plsas.org/uploaded/School_Board/Policies/500/501_-_Weapons.docx.pdf)? Alternatively, if the decision was made by one of your designees, please tell me who that designee was and when they notified you.

We appreciate your timely response.

Thank you Emily,

As outlined in the email to the school on November 1st, [REDACTED] has consistently stated that she was struck on the head five times with a chair during two separate incidents. Initially, she was struck three times, and approximately five minutes later, the aggressor managed to pick up the chair again and hit her twice more. This critical detail would have been evident had [REDACTED] conducted a proper interview with [REDACTED] as part of the school's "investigation."

When the policies, procedures, and training you ask us to trust fail to accurately capture such a fundamental detail, lack mechanisms for addressing deviations from written policies, and misrepresent the victim's experience so significantly, it is impossible for us to trust that they are being applied in a fair or reliable manner. Given the evident bias demonstrated by the school's actions to date, we will be escalating this matter by filing a formal objection with the Minnesota and U.S. Departments of Education. We will be in touch with further updates soon.

[REDACTED] and [REDACTED]

The District has processes and procedures in place to conduct appropriate investigations of allegations of misconduct. To be clear, the District very much wants to investigate the allegations you have shared. The District is particularly concerned about the allegations in your email from Monday that "other abuse also frequently occurred in a classroom with a teacher present." To investigate these serious allegations, the District needs additional information from [REDACTED] about what specifically occurred.

The District wants to gather that information in a manner that will not harm Caty. As previously shared, we would be willing to have her submit written responses to questions. Or, if specific questions may be too much, we'd ask that

share the allegations she remembers in as much detail as possible, including the dates or approximate time frame of events, who was involved, who may have witnessed them, and what occurred. Either process would allow you and her service providers to determine the best time and manner in which to respond and to let [REDACTED] decide whether she would like to orally respond with someone else writing the answers or write them down herself. Of course, we remain available to interview [REDACTED] either in person or virtually as well.

In the alternative, if [REDACTED] has already participated in a recorded interview with CornerHouse, law enforcement, or another entity about the allegations, you could provide a copy of that recording or transcript to us for use in the investigation. The District cannot access such records on its own. The District does not use private entities such as CornerHouse to conduct District investigations, in part, because of the District's responsibilities with respect to data privacy of other students and staff. Law enforcement frequently use CornerHouse or similar entities but law enforcement have different data privacy requirements than school districts.

The District is denying your specific request to have CornerHouse interview [REDACTED] for the District investigation. However, that does not mean that the District's investigation will be biased and unreliable. The District's employees who are trained in Title IX investigations have received training in conducting unbiased and fair investigations. It is in the District's best interest to accurately determine what happened and whether any action is required in response.

Please understand that the District cannot provide all the information you seek because it is required to comply with data privacy laws. The District is unable to provide you information regarding any maltreatment reports. Pursuant to Minnesota Statutes Section 260E.35, subd. 3, reports of maltreatment are classified as "confidential." Under the Minnesota Government Data Practices Act, that means the reports are not public and inaccessible to anyone, including a person who is the subject of the report. Minn. Stat. 13.02, subd. 3. If you are looking for information about whether and/or who made such reports, that information is private personnel data on District employees pursuant to Minnesota Statutes Section 13.43.

We understand you have a concern about what you have characterized as "classifying the weapons assault as a lesser offense." The District's investigation concluded that another student hit [REDACTED] in the head two times with a chair. Any consequences or discipline issued to the other student are private educational data on that student pursuant to Minnesota Statutes Section 13.32 and the Family Educational Rights and Privacy Act ("FERPA"). While we understand this response can be frustrating, the District must comply with state and federal law.

We also want to clarify that Principal Kuboushek's direct supervisor is Dr. [REDACTED] Executive Director of Academic Services rather than the School Board. Regardless, you are welcome to copy the School Board or others you deem appropriate on your communications. However, District staff will not copy additional people because these emails contain private data about your child.

Emily and [REDACTED]



Emily Herman

Executive Director of Administrative Services

Title IX Coordinator & Human Rights Officer

Prior Lake-Savage Area Schools

952-226-0021

The information contained in this electronic message may be confidential information and is intended only for the use of the individual(s) to whom this electronic message is addressed. If the reader of this message is not the intended recipient, or the employee or agent responsible to deliver it to the

intended recipient, you are hereby notified that any dissemination, distribution or copying of this electronic communication or any attachment thereto is strictly prohibited. If you have received this electronic communication in error, you should immediately return it to us and delete the message from your system. Thank you.

Hello Emily and [REDACTED]

We are reaching out to confirm the email sent the evening of 12/2 has been received. Specifically, we are holding on the following -

1. Confirmation that the school is denying our request to have Catelyn's interview be conducted by a demonstrably unbiased and reliable investigator.
2. We continue to hold on information as to the steps the school has taken relating to their mandated reporter obligations after learning a teacher failed to notice (or chose not a report) a child getting hit in the head 5 times with a chair while under their direct supervision, as well as the steps taken towards that obligation after learning of the subsequent assault Nov 1st; this was first requested Nov 1st.
3. We continue to hold on information as to the rationale behind classifying the weapons assault as a lesser offense, also initially requested Nov 1st.

Thank you,
[REDACTED]

Thank you for your response, Emily - as your previous communications only indicated no one would be available Wed-Friday, I did not realize that [REDACTED] was also out of the office last Tuesday.

We agree the email quarantine process is problematic; given how hard it is for victims to come forward in the first place, it breaks my heart to think of how many complaints may have fallen through the cracks. As previously mentioned, I did not receive any failure to deliver notifications on the emails sent on the 1st or the 4th; that started happening on the 14th. As an IT professional with more than 20 years of experience in the field, I know that it's extremely unlikely for a system to behave differently given the same input without some kind of change being made to that system. This is moot, however - the district is [obligated to monitor and review filtering activities](#), and given [REDACTED] was aware an email with a complaint was coming due to his interaction with [REDACTED] on Nov 1st, and the school was notified we were keeping [REDACTED] home from school due to concerns for her health, wellbeing, and safety - as noted in the emails sent to the attendance inbox on the 4th, 5th, and 6th - the position that it was not possible for the school to know about the complaint until the 14th simply does not pass the smell test. Given our struggles communicating to date, we find the auto-reply provided by the school board a helpful audit that our message has reached plsas's network, and fail to see how including Joe's immediate supervisor on these communications is out of line. If there is someone in-between [REDACTED] and Michael that we should be including instead please let us know.

Since the 1st, We have made multiple requests for information relating to the school's obligation to report the assault with a weapon that occurred in class with a teacher present. Our daughter is still struggling with concussion symptoms to this day, and requires months of medical intervention to address the physical and cognitive impact caused by the assault. We have also made multiple requests for an explanation as to how this incident could have so little consequences for the aggressor. Those requests have been consistently ignored by both [REDACTED] and yourself. This is a strong indication of bias in favor of the school district, which is a concern for us as the other abuse also frequently occurred in a classroom with a teacher present. [REDACTED] is entitled to have unbiased and reliable investigators and decision makers involved in her complaint. To be clear, you are denying us this option?

Thank you,
[REDACTED]

[REDACTED] and [REDACTED]

Thank you for your follow-up. I was out of the office until today, as noted in my out of office reply on Monday evening. However, I appreciate the follow-up given the previous quarantined email you experienced. Also, I would like to take note that due to the sensitive and confidential nature of the allegations, [REDACTED] and I will not be including other entities on the email chain when we respond.

We appreciate your concern with interviewing for your daughter. As mentioned previously, our investigation

is separate from other entities and therefore we cannot use an outside interviewer for our process. We would still appreciate the opportunity to meet with you and your daughter either in-person or virtually. However, we would like to offer an alternative option. If you still do not wish to interview with us, we could send a set of written questions for our initial interview that you could complete with your daughter. It would be best that the written responses are either dropped off at or mailed to Hidden Oaks or District Services Center to either [REDACTED] or myself. This would ensure the email quarantine process would not impede the delivery of the responses.

Please let us know at your earliest convenience which option you would prefer.

Thank you again for working with us as we try to effectively move forward with the investigation of the allegations presented.

Emily and [REDACTED]



Emily Herman

Executive Director of Administrative Services

Title IX Coordinator & Human Rights Officer

Prior Lake-Savage Area Schools

952-226-0021

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[REDACTED]
Hello Emily and [REDACTED]

We are reaching out to confirm the email sent Monday evening has been received.

Thank you,
[REDACTED]

[REDACTED]
[REDACTED] and [REDACTED]

I hope this message finds you well. Allow me to take a moment to introduce myself—my name is Emily Herman, and I serve as the Executive Director of Administrative Services for Prior Lake-Savage Area Schools.

I am reaching out to follow up on the email sent by [REDACTED] last week and to underscore the importance of connecting with you. Our priority is to address the concerns you have raised with the utmost care and urgency, and your collaboration is essential to moving forward effectively.

We understand that this is a challenging time and that coordinating schedules may be difficult. However, it is essential that we schedule an initial interview to ensure we can take appropriate steps to address the matter. Please let us know your availability for a meeting within the next few weeks (please note the district is closed November 27-29), either in person or virtually, so we can accommodate your preferences.

If there are specific needs or considerations you would like us to take into account, please don't hesitate to share. Your input and partnership are critical in helping us move forward effectively.

Thank you, and we look forward to hearing from you soon.
Emily and [REDACTED]

**Emily Herman**

Executive Director of Administrative Services
Title IX Coordinator & Human Rights Officer
Prior Lake-Savage Area Schools
952-226-0021

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and

Thank you for your response and for letting us know about the timeline of the ongoing investigation with the Prior Lake Police Department. We understand the importance of allowing to focus on that process and appreciate you keeping us informed.

Following an email systems audit with our Technology department, we want to inform you that your original email from November 1, 2024 and November 4, 2024 follow-up email ("original email chain") regarding these allegations was filtered by our email security protocols. We have confirmed that the email system generates automated replies (i.e. the School Board email auto-reply) as an email enters the system. Then, the system reviews the content of the email and quarantines any messages based on established security protocols. Therefore, we can confirm that the School Board auto-reply email was sent to you but your original email chain was not delivered to any of the @plsas.org inboxes. We apologize this caused a delay in receiving your original email chain and we want to assure you that we are treating this matter with the utmost urgency and attention.

It is important to note that the school's role in addressing these concerns is separate and distinct from the law enforcement investigation. Our goal is to ensure a safe and supportive environment for all students and to thoroughly address the concerns raised. Conducting an initial interview is a critical step in our process, as it allows us to gather necessary information to proceed with any potential actions within the school's purview.

While we understand this week may not work for you, it is essential that we schedule this initial interview as soon as possible to ensure we are able to appropriately address the situation. Please let us know days and times within the next week (please note the district is closed November 27-29) that would work for you. If you are unable to meet in person, we can explore alternative options, such as a virtual meeting.

Regarding your request for incident reports:

1. Please find the attached incident report from the health class incident.

2. There is currently no incident report from the conversation on November 1st. Based on internal interviews, when asked if [REDACTED] would like to share a report with [REDACTED] it was stated that the preference was to communicate in writing and no verbal report was shared at that time. Therefore, the initial communication received on the sexual abuse allegations was not received until Friday, November 15th when you forwarded the screenshots of the original email chain that was quarantined by the email security protocols discussed above.

Thank you as we try to work together to address these concerns. Please feel free to reach out if you have additional questions or if there are any accommodations we can make to facilitate the intake interview.

[REDACTED] and Emily Herman

School Board [REDACTED]

Fri, Dec 13, 2024 at 11:26 AM

Thank you for contacting the PLSAS School Board. We want to let you know that all School Board Directors have received your email. We value and appreciate your input and are grateful for your engagement with our district.

If you've made a request or require additional follow up I, as the School Board chair, or a designee will respond. If needed, I may also forward your email to the appropriate administrator to ensure your questions or concerns are properly addressed.

We appreciate your engagement and thank you for your support.

Sincerely,

[REDACTED]
PLSAS Board Chair

Michael Thomas <mthomas@plsas.org>

Fri, Dec 13, 2024 at 2:57 PM

Mr. [REDACTED]

I acknowledge receipt of your email. Information related to discipline of another student is private educational data on that student and cannot be disclosed to other families. The District will respond to your complaint by following the appropriate process outlined by the agency to which it is submitted.

Regards,

Michael
[Quoted text hidden]

To: Michael Thomas <mthomas@plsas.org>

Thank you Michael Please note I am not asking for any private data, simply for your to confirm the posted policy was followed and the date the policy was complied with. To confirm, your position is that school policy prevents you from telling me whether or not school policy was followed in a violent attack in which my daughter was the victim? I'm not able to locate that in any of the posted materials - can you outline where that is stated?

[Quoted text hidden]

EXHIBIT 5B

Delivery Status Notification (Failure)

1 message

Mail Delivery Subsystem

Fri, Dec 20, 2024 at 10:27 AM

Delivery to the following recipient failed permanently:

Technical details of permanent failure:

554.5.7.1 The user or domain that you are sending to (or from) has a policy that

554.5.7.1 prohibited the mail that you sent. Please contact your domain

554.5.7.1 administrator for further details. For more information, please visit

554.5.7.1 <http://support.google.com/a/answer/172179>

----- Original message headers -----

Delivered-To: mthomas@plsas.org

Received: by 2002:a05:7022:23a8:b0:92:a101:f60c with SMTP id bz40csp677504dlb; Fri, 13 Dec 2024 09:26:54 -0800 (PST)

X-Received: by 2002:a05:6808:30a3:b0:3e7:ad4c:e856 with SMTP id 5614622812f47-3eba69840c1mr205

4196b6e.35.1734110814058; Fri, 13 Dec 2024 09:26:54 -0800 (PST)

ARC-Seal: i=1; a=rsa-sha256; t=1734110814; cv=none; d=google.com; s=arc-20240605;

b=jPfbntCfZ77njIDj5vqK1ikyS7mmmspAgS8sdg0aZg2yETu3ipW9lban0sH2aJLytJ

weBL7F1DNBrJx84ML8QbQluNVH+I/Ecmg2gcoYldRrOaA7hvWfy1InnLLP/vjE6ET0lt

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FW8LcGMokOa9f4ooo6DOcq/WYzuAgAJ+VLTBCecaEwqPIXk0lq0ymJ6XE4/X08jvZHgt p39w==

ARC-Message-Signature: i=1; a=rsa-sha256; c=relaxed/relaxed; d=google.com; s=arc-20240605;

h=cc:to:subject:message-id:date:from:in-reply-to:references :mime-version:dkim-signature;

bh=mw+LZdi4JM2lr8w5wYOlbIOx/9G4LEoDeDvFk9h90I=; fh=cbScNJRjkhMJEua5DwC/Rv+iEAH

M4f7nN8SabtAfjxA=; b=ICXDFpVOoaTTwGiVGvho4ElXwihw8VTrrMwMpOS7PAuZ03M/PSR3limAUE0oOVMBRj

4lcJofuMUjrXbTZWMI0J5VjK4s0U/dsiSoPxxjx1YpM4XxlrQu/5L7JoVJbj/tvuS7t

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WHgorNNB/mavN9FS7xUkLVvITRcmIxsBZIMFLRkVxYUqjQmBq2NdEzVS6PzdKMCN9eau BLFA=;

dara=google.com

ARC-Authentication-Results: i=1; mx.google.com; dkim=pass header.i=@gmail.com header.s=20230601

header.from=gmail.com; dara=pass header.i=@plsas.org

Received: from mail-sor-f41.google.com (mail-sor-f41.google.com. [209.85.220.41]) by mx.google.com with SMTPS id 5614622812f47-3eb078688e1sor3303867b6e.15.2024.12.13.09.26.53 (Google Transport Security); Fri, 13 Dec 2024 09:26:54 -0800 (PST)

client-ip=209.85.220.41;

Authentication-Results: mx.google.com; dkim=pass header.i=@gmail.com header.s=20230601

header.from=gmail.com; dara=pass header.i=@plsas.org

DKIM-Signature: v=1; a=rsa-sha256; c=relaxed/relaxed; d=gmail.com; s=20230601; t=1734110813; x=1734715613;

darn=plsas.org; h=cc:to:subject:message-id:date:from:in-reply-to:references :mime-version:from:to:cc:subj

ect:date:message-id:reply-to; bh=mw+LZdi4JM2lr8w5wYOlbIOx/9G4LEoDeDvFk9h90I=;

b=OeWW1IXWi7YTwiZAxuS6op0ZoWnkZQa2zRtvuR5q5W5qauTi9W9PyGdNjfoA5spXyz

gQZfJv5MP2RDq/V8OasSrrKNIqG8k8TR8W/cXBCNNpNe4SS0e3m/l7KFdfkJfI6ikbWw

twLdRdcsmPqGDSWfExbbg966YESEdPvexTgJ0XMk9TLPXKxAOyYp94wreQpIXE2/jely4

plizF2Gh8qZ1OD3tcUdIEZQZxw71792l+vPnwksCqPUHss16QH9mWEGWnllnMv8Wkik

ntT+8dbNymofFtMDaRk7Qh2fBJikIZ9ToZBBkflBfbSpNW9xl4IRqb/kwc2wNsZIF6QN dSNg==
X-Google-DKIM-Signature: v=1; a=rsa-sha256; c=relaxed/relaxed; d=1e100.net; s=20230601; t=1734110813;
x=1734715613; h=cc:to:subject:message-id:date:from:in-reply-to:references:mime-version:x-gm-message-st
ate:from:to:cc:subject:date:message-id:reply-to; bh=mw+LZdi4JM2lr8w5wYOlblOx/9G4LEoDeDvFk9h90I=;
b=SWi5nolkXh/m1RV3xd+tMaVYcM352khh9PuUzZDI8j/3ldizK8qInhVOGMHmlEko0O
qO+sDwN3HcsIxOYIfulrVbt4kG0xXZYPX8alca7+5f3MiebFIW0YsmtKthKURMoJeuE k5ISScAUu/
RU0p1W0RkSsUIVhzBrr/Qj5vOIUdKqT1b0+5l/978k+wH2He2mVdPgQeuO
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X-Forwarded-Encrypted: i=1; AJvYcCVZHxPa9Jlv9+u/xW/0Bu7Oae/HCRvrDwibbHXOx419ueEzyd5LWaG
GRf6iJaUV6EK7lR9ibCw==@plsas.org, AJvYcCW04TVpVXAcDERvz5E/LzD5S
42LihP6oAXUBPMkVmltQqnSUQY4P3FmGSPdEzQ85L8DbpZbdCL5A==@plsas.org,
AJvYcCX2faJw8QPQ7FvPMHk0lddwYYZpDzONGLcfcv7P+uo8Gosul1Ln2uN11OkdAcS5aESG5SF89yeGdvts2I=@p
lsas.org
X-Gm-Message-State: AOJu0YxST/PWODx4IGAXaVp2XzKCy5wpqFIKgegYQHNqldRglQ8xvpAV
IFIL7OXXoUL/PL5CmfEzEWBlrsZ18xbnVBOKqF6ENgNoxXiyKBV0MZh90KOv05Bb8V7kK3ykzjG
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X-Received: by 2002:a05:6808:14c8:b0:3eb:8e20:bb8f with SMTP id 5614622812f47-3eba6997e8amr170
5647b6e.42.1734110813330; Fri, 13 Dec 2024 09:26:53 -0800 (PST)
MIME-Version: 1.0

<CAOexsV6GhEj+bpu9BTUvctSjBt6L

<CAOexsV43jr6fk83z-gEBdf6R7HQR1v8i73m7oOXCyS3A4TvnA@mail.

Date: Fri, 13 Dec 2024 11:26:42 -0600

Subject: ATTN: Michael Thomas - follow up request
To: Michael Thomas <mthomas@plsas.org>

Content-Type: multipart/alternative; boundary="00000000000007a6a306292a2394"

EXHIBIT 5C



March 12, 2025

Dear Mr. [REDACTED]:

I am writing in response to your two emails dated February 28, 2025, and your email from March 3, 2025. The District has made every effort to provide you with the requested information promptly while managing the numerous other responsibilities of our staff. As outlined in my expected response timeline, I am providing this response on the anticipated date of March 13, 2025.

1. Demands for unredacted files

The District denies this request. All responsive data has been provided. Redactions of private educational data on students other than your child have been made pursuant to Minn. Stat. § 13.32. Private personnel data has been redacted pursuant to Minn. Stat. § 13.43.

2. Multiple requests to create data

In the three emails referenced, you have made several repetitive demands for the District to generate data. Under the Minnesota Government Data Practices Act, the District is not obligated to respond to inquiries, engage in debates, or create new data in response to such demands. To date, existing responsive data has been provided in accordance with the evolving requests and numerous emails received. The District has consistently responded to requests in good faith, despite the complaints and requests continuing to evolve without a clear or defined resolution being articulated from your end.

3. Repeated data request

[REDACTED]

have been provided in PDF format, along with PST file format. The PST file enables the recipient to access the requested header information. Please note that when the District conducts email searches between specific addresses, the system does not filter or block any emails, nor does it retain rejected or undelivered messages. As such, the District has no further responsive data beyond what has been provided.

Additionally, the District is unclear on what further information you are requesting regarding a "full email log." You have already received the full set of emails from our system in PDF format, as well as the PST file, which allows you to review the requested header details.

4. Data request clarification

In one of your emails, you requested a full, unredacted version of page 4 of the "SO Data Request File 3," which states "Document is unavailable." This page pertains to the audio file retrieved by the system as part of the data request. When the system processes the data request into a PDF, it generates a corresponding page for the audio file. Please note that the audio file was included in the email sent on February 13, 2025. There is no additional responsive data for this request.



5. New public data request

Upon reviewing the three emails, we have identified one new public records request for "any records, policies, or training materials addressing staff responsibilities when witnessing acts of violence or harassment." We will begin gathering the requested data and respond as soon as possible. Since neither you nor your student is the subject of this request, it will be processed in accordance with the procedures for existing public records requests. As noted above, all responsive data for the other requests outlined in the three emails has already been provided.

6. Investigation into claims of sexual harassment and assault

The District made several attempts to gather information from your student, offering various options, including written responses in lieu of a live interview, but all attempts were declined. As a result, the investigation was limited by the absence of crucial details such as witness names, timelines, and evidence. Nevertheless, the District conducted a thorough investigation by interviewing staff and students associated with your student. Despite these efforts, the investigation could not substantiate the allegations due to the lack of concrete evidence and inability to identify the respondent/s. Attached you will find a written determination.

Closing

Going forward, the District will only respond to data requests that are properly submitted. To facilitate effective communication, we strongly encourage you to use the Data Request Form, which can be accessed here: [Data Request Form](#)

As outlined in Dr. Thomas's response on January 24th, the District is unable to continue addressing repeated and evolving complaints submitted under various headings through multiple, demanding emails with increasingly short and arbitrary timelines. District staff have consistently addressed each of your concerns in a timely and good-faith manner. Despite these efforts, you continue to seek debates regarding District policies and applicable law. The District is not engaged in such debates. Should you disagree with the District's processes, you are welcome to seek relief through the appropriate entities.

Sincerely,

Emily Herman
Executive Director of Administrative Services

CC: Dr. Michael Thomas, Superintendent

EXHIBIT 5D

March 13, 2025 Response11 messages

Cc: Michael Thomas <mthomas@plsas.org>

Please see the attachments below for responses to your recent emails.

Thank you,
Emily

**Emily Herman**

Executive Director of Administrative Services

Title IX Coordinator & Human Rights Officer

Prior Lake-Savage Area Schools

952-226-0021

The information contained in this electronic message may be confidential information and is intended only for the use of the individual(s) to whom this electronic message is addressed. If the reader of this message is not the intended recipient, or the employee or agent responsible to deliver it to the intended recipient, you are hereby notified that any dissemination, distribution or copying of this electronic communication or any attachment thereto is strictly prohibited. If you have received this electronic communication in error, you should immediately return it to us and delete the message from your system. Thank you.

2 attachments**2024 Title IX Sexual Harassment Complaint - Summary Report.pdf**

57K

**March 13 2025 E. Herman Response.pdf**

118K

Cc: Michael Thomas <mthomas@plsas.org>

As a follow-up, after continued research and receiving additional support from Google Administration, our tech department was able to generate the attached report today.

As noted in the letter sent yesterday, we remain unclear about what you are specifically seeking with a request for a "full email log." However, we wanted to share this report as a new data option, which reflects email exchanges between

Thank you,
Emily



Emily Herman
Executive Director of Administrative Services
Title IX Coordinator & Human Rights Officer
Prior Lake-Savage Area Schools
952-226-0021

The information contained in this electronic message may be confidential information and is intended only for the use of the individual(s) to whom this electronic message is addressed. If the reader of this message is not the intended recipient, or the employee or agent responsible to deliver it to the intended recipient, you are hereby notified that any dissemination, distribution or copying of this electronic communication or any attachment thereto is strictly prohibited. If you have received this electronic communication in error, you should immediately return it to us and delete the message from your system. Thank you.

[Quoted text hidden]

 **SeanLogs021225to031425.xlsx**
27K

Cc: Michael Thomas <mthomas@plsas.org>

Hello Emily,

Thank you for your patience awaiting my response - I note I have been out of town and without access to email for the past two weeks. This looks like a great start - when can I expect to receive a fully responsive dataset that includes all emails I have sent, including the original emails reporting the sexual assaults?

Additionally, while I got in late last night and have yet to have a chance to fully review your earlier responses, it appears while preparing your responses to my data request you had time to complete the title ix investigation and come to a dismissal decision. Please consider this notification of my intent to appeal - I will follow up with full details later this evening, but at a bare minimum I would call out that the district was aware that a police investigation had been conducted into the matter, and never once expressed to it was having difficulty identifying the perpetrator or asked any follow-up questions. Additionally, I note the dismissal calls out [REDACTED] refused to submit an electronic response to interview questions, whereas the actual offer you made stated -

"We appreciate your concern with interviewing for your daughter. As mentioned previously, our investigation is separate from other entities and therefore we cannot use an outside interviewer for our process. We would still appreciate the opportunity to meet with you and your daughter either in-person or virtually. However, we would like to offer an alternative option. If you still do not wish to interview with us, we could send a set of written questions for our initial interview that you could complete with your daughter. **It would be best that the written responses are either dropped off at or mailed to Hidden Oaks or District Services Center to either [REDACTED] or myself.** This would ensure the email quarantine process would not impede the delivery of the responses."

Thank you,
[REDACTED]

[Quoted text hidden]

Cc: Michael Thomas <mthomas@plsas.org>

Hello Emily,

It has been almost a month since I have heard from you. When can I expect to receive the full Google Workspace Email Log export? An update on my appeal?

I note both Google and ChatGPT put the time it would take a Google Workspace administrator to generate this data at between 20 minutes to an hour and a half, with the later estimate including 20 minutes for the administrator to locate, read, and understand the instructions. Can you help me understand why it has taken months?

Thank you,

[Quoted text hidden]

2 attachments

 **Google_Workspace_Email_Log_Timing_Estimate.pdf**
3K

 **GoogleWorkspaceLogInstructions.pdf**
312K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

2 attachments

 **Data Request Form.pdf**
82K

 **Formal Data Request.pdf**
164K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached. Also, I note there was an error in the "Data Request Form" submitted earlier today - please provide

Thank you,

[Quoted text hidden]

2 attachments

 **Formal Request - 506-1.pdf**
143K

 **PLSAS_506.1 - Bullying_Prohibition.pdf**
199K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

 **Formal Request Weapons Policy.pdf**
265K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

 **Data Correction - Weapons Investigation.pdf**
703K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached Formal Title IX complaint+request for appeal process

[Quoted text hidden]

 **titleixcomplaint_merge.pdf**
808K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

 **forwarding_activity_in_logs.pdf**
1598K

Cc: Michael Thomas <mthomas@plsas.org>

I am writing to follow up on a batch of data subject requests I submitted to the District under the Minnesota Government Data Practices Act (Minnesota Statutes Chapter 13). I emailed these requests on **May 5, 2025** and **May 6, 2025**, respectively. As of today (May 7, 2025), more than 48 hours after the first request, I have not received any acknowledgment or confirmation that the District has received these requests. I am concerned about the lack of response, especially given the timely response requirements in Chapter 13.

Contrary to District framing, the timelines and response expectations I put forth are not arbitrary or unreasonable. Minnesota law **obligates prompt action** on data requests. In particular, **Minn. Stat. § 13.03, subd. 2** requires every government entity to establish procedures to ensure that requests for government data are handled "in an appropriate and prompt manner"[revisor.mn.gov](https://www.revisor.mn.gov). Furthermore, because my requests are for data about myself (i.e., I am the data subject), the timeline in **Minn. Stat. § 13.04, subd. 3** applies. That provision clearly states that the responsible authority "**shall comply immediately, if possible**" with a data subject's request, "**or within ten days of the date of the request, excluding Saturdays, Sundays and legal holidays, if immediate compliance is not possible.**"[revisor.mn.gov](https://www.revisor.mn.gov) In other words, the Data Practices Act expects a very prompt response for requests made by the subject of the data – up to a maximum of ten business days.

Failure to promptly acknowledge or respond to a data request is not a trivial matter. The Minnesota Department of Administration has issued guidance and advisory opinions underscoring that agencies must respond timely and cannot ignore requests. For example, in **Advisory Opinion 19-002 (2019)**, the Commissioner of Administration opined that when a state board "**did not reply to the data request**", that "**is not an appropriate response to a request for access to government data.**"content.govdelivery.com In another opinion, the Commissioner emphasized that an entity's failure to provide a data subject with access to their data within the ten-business-day window violates the statute – the City in that case "**did not respond appropriately**" when it "**did not respond within 10 business days**" as required by Minn. Stat. § 13.04mn.gov. These opinions make clear that **prompt communication and compliance** are mandatory obligations under Chapter 13, not optional courtesies.

Even if gathering the requested data might take up to the ten days allowed by law, **basic acknowledgment of receipt** is widely regarded as a minimum best practice. Promptly confirming that you received my request and are processing it is important for transparency and to assure me that the request is being handled. Many government entities follow this practice of acknowledging requests upon receipt as part of their Data Practices procedures [wlssd.com](https://www.wlssd.com). The lack of any acknowledgement from the District thus far raises concerns that my requests may not have been received or logged, or that they are not being handled in the statutorily required manner.

In light of the above, I respectfully request the following:

- **Immediate acknowledgment of receipt** of my May 5 and May 6 data requests. Please confirm that these email requests were received by the responsible authority or designee, and the dates on which they were received.
- **Estimated timeline for compliance with my requests.** Please inform me when I can expect to inspect or receive copies of the requested data. As noted, Minn. Stat. § 13.04, subd. 3 requires that data subject requests be fulfilled "**immediately, if possible,**" and absolutely no later than ten business days from the request date [revisor.mn.gov](https://www.revisor.mn.gov). An indication of when the District plans to provide the data (or an explanation if more time is needed for a complex request) will help ensure we remain within statutory compliance.

I want to emphasize that **these requests were properly submitted under Chapter 13**, and the District has a legal obligation to respond **promptly and fully**. At minimum, a timely acknowledgment is expected. I am eager to cooperate and willing to clarify any aspect of my requests if needed. However, I need confirmation that the District is aware of the requests and is moving forward to fulfill them as required by law.

Thank you for your prompt attention to this matter. I look forward to your immediate acknowledgment and an update on the processing of my data requests. If there is any reason for the delay or if additional information is required from me, please let me know right away. Prompt communication will help avoid any further issues and ensure compliance with the Minnesota Government Data Practices Act.

Sincerely,

[Redacted signature]

[Quoted text hidden]

EXHIBIT 5E

Clarification and Reservation of Rights Regarding District-Initiated Privacy Investigation and Outstanding Data Requests

3 messages

Dear Emily and Michael,

We are writing to address several ongoing concerns regarding the District's handling of our data requests, the record correction process, and, most recently, the District's decision to initiate a privacy investigation that we have never requested.

1. Acknowledgment of District's Statement

We acknowledge the District's recent statement that we have not made any formal complaints regarding privacy violations. This is accurate: at no point have we submitted a formal complaint or request for a privacy investigation.

2. Confusion Regarding District's Actions

Given the District's repeated and explicit commitments to only respond to matters required by law—and its consistent refusal to do even that, —we are deeply confused as to why the District would choose to proactively conduct a "good-faith" investigation into a privacy violation that has never been alleged. This is especially perplexing in light of the District's pattern of declining to investigate or address issues unless compelled by statute or policy, and its ongoing failure to provide records and explanations required by FERPA, Title IX, and the MGDPA.

3. Concerns About Pretext and Impact

The only plausible explanation we can identify is that the District may be attempting to use the appeal of our record correction request as a pretext to frame future complaints about privacy violations as administrative actions already addressed, thereby seeking immunity from further claims. We sincerely hope this is not the case, as such a tactic would not only constitute intentional obstruction of lawful discovery and willful withholding of records, but would also have a profound and lasting impact on our 12-year-old child—the victim in this matter. To be clear, if the District were to use a bad-faith legal maneuver to avoid accountability for privacy violations, the emotional and psychological harm to our child would be severe. She would be forced to confront the reality that not only was her privacy violated, but that the adults and institutions charged with her protection have chosen to shield themselves from responsibility rather than provide her with a fair hearing or a day in court. This would reinforce her sense of betrayal, powerlessness, and isolation, and would further erode her trust in the educational system—a system that has already failed to provide a plan for her safe return or hold anyone accountable for the physical assault she endured. No education or legal professional acting with a legitimate interest in her education could possibly endorse or participate in such a tactic.

4. Reservation of Rights and Clarification

Despite the unlikelihood of this being the District's intent, we feel compelled to state explicitly for the record: - We have not requested any privacy investigation. - Any such investigation is in no way related to the matter at hand, which concerns the District's failure to correct inaccuracies in our child's education record and to provide the records and data to which we are legally entitled. - We explicitly reserve the right to pursue claims regarding privacy violations at a later date, after the District has fulfilled its legal obligations to provide all requested records and data. This includes, but is not limited to, complete email logs of all communications between ourselves and the District, as well as any communications in which myself, my wife, or our child were a data subject, dating back to October 30th. We also request the content of the original email containing our Title IX complaint and the audit the District performed confirming that email had been quarantined.

5. Evidence of Data Existence and Concerns About Spoilage

There is hard proof in the District's own records that these data and logs existed at one time, and our requests for them were made well before Google's 180-day retention window would have expired. If these records are now unavailable, the only reasonable conclusion is that they were intentionally destroyed or withheld by the District, which would constitute intentional spoilage and a further violation of our rights. We request a prompt and substantive response to this email, and reiterate our demand for the immediate production of all outstanding records as required by law.

Sincerely,

School Board

Sun, Jun 1, 2025 at 9:04 AM

[REDACTED]

Thank you for contacting the PLSAS School Board. We want to let you know that all School Board Directors have received your email. We value and appreciate your input and are grateful for your engagement with our district.

If you've made a request or require additional follow up I, as the School Board chair, or a designee will respond. If needed, I may also forward your email to the appropriate administrator to ensure your questions or concerns are properly addressed.

We appreciate your engagement and thank you for your support.

Sincerely,

[REDACTED]
PLSAS [REDACTED]

To: Andy OBrien [REDACTED]

[Quoted text hidden]

Itemized Redaction List

[illegible]

Itemized Redaction List

[illegible]

Itemized Redaction List

Bates/Page	Line	Redaction reason
PLSAS-EX5-025	3	Redacted to protect personal privacy.
PLSAS-EX5-025	10	Redacted to protect personal privacy.
PLSAS-EX5-025	17	Redacted to protect personal privacy.
PLSAS-EX5-025	24	Redacted to protect personal privacy.
PLSAS-EX5-025	1	Redacted to protect personal privacy.
PLSAS-EX5-025	2	Redacted to protect personal privacy.
PLSAS-EX5-025	9	Redacted to protect personal privacy.
PLSAS-EX5-025	16	Redacted to protect personal privacy.
PLSAS-EX5-025	23	Redacted to protect personal privacy.
PLSAS-EX5-026	25	Redacted to protect personal privacy.
PLSAS-EX5-028	50	Redacted to protect personal privacy.
PLSAS-EX5-028	7	Redacted to protect personal privacy.
PLSAS-EX5-028	6	Redacted to protect personal privacy.
PLSAS-EX5-028	49	Redacted to protect personal privacy.
PLSAS-EX5-028	2	Redacted to protect personal privacy.
PLSAS-EX5-029	13	Redacted to protect personal privacy.
PLSAS-EX5-029	2	Redacted to protect personal privacy.
PLSAS-EX5-029	12	Redacted to protect personal privacy.
PLSAS-EX5-029	11	Redacted to protect personal privacy.
PLSAS-EX5-029	10	Redacted to protect personal privacy.